

IN THE SENATE

SENATE BILL NO. 1232, As Amended

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO CRIME VICTIMS; REPEALING SECTION 19-5301, IDAHO CODE, RELATING TO DISTRIBUTION OF MONEYS RECEIVED AS A RESULT OF THE COMMISSION OF CRIME; AMENDING TITLE 19, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 63, TITLE 19, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING PROCEEDS DERIVED FROM CRIMINAL NOTORIETY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section [19-5301](#), Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Title 19, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 63, Title 19, Idaho Code, and to read as follows:

CHAPTER 63
IDAHO SON OF SAM LAW

19-6301. SHORT TITLE. This chapter shall be known and may be cited as the "Idaho Son of Sam Law."

19-6302. PURPOSE. The purpose of this chapter is to ensure that victims of crime may recover restitution or damages from money or property that offenders earn because of the publicity of their crimes. This chapter regulates only the money made, not speech itself, in order to protect constitutional free expression. This chapter shall apply to proceeds derived from criminal notoriety without regard to the expressive content or medium through which such proceeds are generated and shall not be construed to regulate speech or expression.

19-6303. DEFINITIONS. As used in this chapter:
(1) "Crime" means any felony or misdemeanor committed in this state that results in a conviction.

(2) "Exploit" or "exploitation" means knowingly and commercially deriving financial gain where the criminal notoriety of a crime is a substantial contributing factor to the value of the proceeds. Incidental, educational, journalistic, or expressive references to a crime that are not undertaken for the purpose of deriving commercial gain from criminal notoriety shall not constitute exploitation under the provisions of this chapter.

(3) "Notoriety of a crime" means the public attention from a crime when directly connected to the offender's part in the crime.

(4) "Offender" means a person convicted of a criminal offense in this state.

1 (5) "Proceeds" means any money, royalties, or other thing of value re-
2 ceived by an offender that is derived from the criminal notoriety of a crime,
3 regardless of the medium or form in which the proceeds are generated.

4 (6) "Victim" is as defined in section 19-5304, Idaho Code.

5 19-6304. ESCROW ACCOUNT. Any person or company who pays an offender
6 for work that exploits the notoriety of a crime shall send such payment to
7 the Idaho state treasurer, who shall place the payment in an interest-bear-
8 ing escrow account for five (5) years unless extended by court order upon a
9 showing of good cause. The state treasurer, in consultation with the attor-
10 ney general and subject to legislative approval, shall adopt rules for such
11 escrow administration.

12 19-6305. NOTICE TO VICTIMS. The attorney general shall notify all
13 known victims within thirty (30) days after money is deposited in escrow.
14 Victims may file lawsuits or use restitution orders to claim funds during the
15 escrow period.

16 19-6306. DISTRIBUTION. (1) If a victim wins a judgment, the court
17 shall order payment to the victim from the escrow account.

18 (2) If more than one (1) victim has a valid claim, funds shall be divided
19 fairly unless the court orders otherwise.

20 (3) Any money remaining after five (5) years and after all valid claims
21 are paid shall be returned to the offender.

22 19-6307. EXCEPTIONS. The provisions of this chapter shall not apply
23 to:

24 (1) Payments for legal services;

25 (2) Works of art or fiction that only briefly mention the crime;

26 (3) Regular wages or income not related to the crime;

27 (4) Money earned before the crime was committed; or

28 (5) News or documentary works created mainly to inform or educate and
29 where the offender is paid only normal interview fees.

30 19-6308. FREEDOM OF SPEECH. (1) Nothing in this chapter shall be in-
31 terpreted as restricting or censoring freedom of speech. The provisions of
32 this chapter shall apply only to money made from the publicity of a crime, not
33 to the content of expression itself.

34 (2) The provisions of this chapter shall be construed narrowly to com-
35 ply with the first amendment to the constitution of the United States and
36 section 9, article I of the constitution of the state of Idaho.

37 19-6309. PENALTIES. Any person or company that knowingly fails to sub-
38 mit proceeds as required by this chapter shall be subject to a civil penalty
39 of up to three (3) times the amount withheld, plus attorney's fees. The at-
40 torney general may bring a civil action to recover such penalties.

41 SECTION 3. An emergency existing therefor, which emergency is hereby
42 declared to exist, this act shall be in full force and effect on and after
43 July 1, 2026.